

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006429

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: CONSUELO BUSTINZA

vs.

DEFENDANT: U.S..BANK NATIONAL
ASSOCIATION ET AL.

NATURE OF PROCEEDINGS: MOTION – DISCOVERY – DISCOVERY FACILITATOR
PROGRAM

RULING

On June 29, 2026, Plaintiff filed a motion to compel Defendant to provide further responses to interrogatories. Defendant argues that Plaintiff's motion is untimely as the parties did not agree to extend the time to move to compel indefinitely as Plaintiff asserts. Defendant also asserts that supplemental responses have been served.

Unless a party moves to compel within 45 days of service of a verified response, the propounding party waives any right to compel further responses unless the parties agree in writing to a further extension. (Code of Civ. Proc. §2030.300). Plaintiff did not produce any written agreement extending the time to move to compel beyond March 2026. Nonetheless, Defendant waived its claim of untimeliness when it served further responses to interrogatories in August and September.

Plaintiff did not file a Declaration of Non-Resolution identifying what responses, if any remain outstanding. Given Defendant's willingness to provide further responses notwithstanding the untimely filing of the motion, the Court finds that the imposition of sanctions would be unjust.

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjEOSHNeEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0006481

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DIRK AGUILAR

vs.

DEFENDANT: JUAN ANON ET AL.

NATURE OF PROCEEDINGS: MOTION – DISCOVERY – DISCOVERY FACILITATOR PROGRAM

RULING

On July 1, 2026, Plaintiff Dirk Aguilar (“Plaintiff”) filed a notice of motion and motion to deem requests for admission admitted against Defendant Benjamin Faber and for monetary sanctions. Plaintiff’s motion argued that Defendant Faber (“Defendant”) was served with the Requests for Admission on December 17, 2025 but failed to serve any response. However, on the same day in which the motion was filed, Defendant filed what appear to be unverified responses to the Request for Admission. Plaintiff however, argues that the motion was served six days before it was actually filed, and only then did Defendant file responses. Thereafter, and in response to meet and confer efforts, Defendant filed a Supplemental Response to Request for Admission which was verified.

Plaintiff now acknowledges that his motion to deem requests admitted should be denied pursuant to Code of Civil Procedure section 2033.220. However, Plaintiff requests monetary sanctions on the basis that it was his service of the motion on Defendant on June 26, 2026 which prompted Defense counsel to send an email averring that responses would be filed on or before July 1, 2026.

A party who must file a motion to obtain responses to requests for admission is entitled to monetary sanctions pursuant to Code of Civil Procedure section 2023.010. In this case, Plaintiff did not receive responses until after the motion was filed. Accordingly, sanctions are appropriate. The amount of sanctions requested is excessive for a simple motion in which there were no responses. The Court shall order \$1,660 in monetary sanctions and costs to be paid within thirty days of this order.